

care and collect payment without providing it, and that Defendants' acts were "so far below standard industry practice as to be unconscionable." (Compl. at 13:6-12.) Stripped of these characterizations, the facts pleaded – the recommendation of euthanasia, the advice against transfer, the administration of intravenous fluids, the dismissal of Plaintiffs' concerns, and the communications regarding Zoë's condition – describe disputed clinical judgment. As pleaded they do not set forth ultimate facts establishing an extreme departure from the standard of care undertaken in disregard of humanity.

Plaintiffs' reference to an exemplary damages award their counsel represents to have obtained in another matter (Opp. at 8:8-12) is unavailing as it is not authority, has no precedential value, and does not bear on the sufficiency of the allegations in this Complaint.

The Court does not hold that exemplary damages under Civil Code section 3340 are categorically unavailable on the facts of this case, nor does it resolve whether the conduct alleged was grossly negligent, which is ordinarily a question of fact. (*City of Santa Barbara, supra*, 41 Cal.4th at 767.) It holds only that the allegations as presently pleaded are conclusory and do not set forth ultimate facts sufficient to support the statutory standard of wrongful injuries to animals "committed willfully or by gross negligence, in disregard of humanity." (Civ. Code, § 3340.)

Because this is Plaintiffs' Initial Complaint and the deficiencies may be curable, leave to amend is granted on both the tethering and sufficiency grounds. Accordingly, Defendants' motion to strike Plaintiffs' prayer for exemplary damages under Civil Code section 3340 is **GRANTED WITH LEAVE TO AMEND**.

V. Conclusion

For the foregoing reasons, Defendants' motion to strike Plaintiffs' prayers for punitive/exemplary damages and emotional distress/general pain-and-suffering damages is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

11. 9:00 AM CASE NUMBER: C26-01406
CASE NAME: RANDY MONTESANO VS. DAWN GUZMAN

*HEARING ON MOTION IN RE: LEAVE TO PROCEED ANONYMOUSLY; REQUEST FOR INTERIM
PROTECTIVE RELIEF PENDING HEARING
FILED BY: GUZMAN, DAWN RENEE

TENTATIVE RULING:

Summary

The Court has reviewed Defendant Dawn R. Guzman's Motion to Proceed Anonymously. For the reasons set forth herein, the Motion is **denied** as moot.

Background

This matter comes before the Court on Defendant's third attempt to seek identical relief. On May 20, 2026, Defendant submitted an *ex parte* application requesting permission to proceed under

pseudonym and to seal the record. This application sought to conceal Defendant's identity in a wrongful-death action brought by Plaintiffs Randy Montesano, et al., arising from the death of a 106-year-old woman, Lena Montesano, allegedly occurring while she was under Defendant's care.

The Court previously denied Defendant's identical request on May 12, 2026, following full briefing and opposition from Plaintiffs. That Order found no good cause existed for proceeding anonymously, noting that California's "Safe at Home" program protects the residential address and location of protected parties, not their identities in civil tort litigation.

Defendant filed the instant Motion reasserting the same arguments previously rejected by this Court. Plaintiffs again opposed. On June 11, 2026, the Court issued its Order Denying the Ex Parte Application, disposing of the matter on the merits.

Analysis

Defendant's present Motion is procedurally improper and substantively without merit.

First, the Motion is **moot**. This Court has twice ruled on this precise issue. The doctrine of law of the case bars relitigation of questions expressly decided in prior orders. Defendant's repeated filings constitute an improper attempt to circumvent the Court's prior rulings through serial motions. The Court will not entertain successive motions for identical relief.

Second, Defendant's "Objection" to the Court's June 11, 2026 Order is procedurally improper and has not been considered by the Court. Litigants may not object to interlocutory orders; appropriate appellate remedies exist for parties aggrieved by adverse rulings.

The Court notes that Defendant appears *pro se*. While the Court affords latitude to self-represented parties, Defendant is hereby placed on notice that she will be held to the same standards of compliance with the Code of Civil Procedure, Rules of Court, and Local Rules as attorneys admitted to practice before this Court. The Court expects strict adherence to procedural requirements governing motion practice. Failure to comply with these standards may result in sanctions, including but not limited to monetary penalties and the striking of pleadings.

Ruling

1. For the foregoing reasons, Defendant's Motion to Proceed Anonymously is, again, **denied**.
2. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling, no later than five (5) days after the hearing.